

PROVIDER	Synthesis BioAnalytics Inc. Delaware Corporation Cambridge, MA 02139	CUSTOMER	Genomix Clinical Diagnostics LLC Delaware LLC South San Francisco, CA 94080
GOVERNING LAW	State of Delaware (USA)	PRIMARY NOTICE	legal@synthesisbio.com / contracts@genomixdx.com

This Master Subscription Agreement (“Agreement”) is entered into as of November 1, 2026 (“Effective Date”) by and between **Synthesis BioAnalytics Inc.** (“Provider”) and **Genomix Clinical Diagnostics LLC** (“Customer”). Provider and Customer may each be referred to herein individually as a “Party” or collectively as the “Parties.” In consideration of mutual covenants, premises, and fees set forth herein, the Parties agree as follows:

1. DEFINITIONS

- 1.1 “Affiliate”** means any entity directly or indirectly controlling, controlled by, or under common control with a Party (>50% voting stock or equity interest).
- 1.2 “Clinical Specimen Metadata”** means sample accession identifiers, sequencing assay metrics, FASTQ/VCF pipeline execution logs, and bioinformatics annotation data generated or analyzed by Customer via the Platform.
- 1.3 “Documentation”** means Provider’s validated bioinformatics pipeline manuals, GxP validation packages, and API schema specifications.
- 1.4 “Order Form”** means an ordering document executed by both Parties referencing this Agreement detailing tier licensing, NGS sample throughput quotas, and compliance addenda.
- 1.5 “SaaS Platform”** means Provider’s cloud-native genomic variant calling, tertiary annotation, and CLIA/CAP-ready audit suite (“HelixFlow Cloud”).
- 1.6 “User”** means a molecular pathologist, certified laboratory director, or authorized bioinformatician credentialed under Customer’s enterprise account.

2. ACCESS RIGHTS AND GXP REGULATORY SCOPE

- 2.1 Provision of Access:** Subject to compliance with this Agreement and payment of Fees in applicable Order Forms, Provider grants Customer a worldwide, non-exclusive, non-transferable right during the Subscription Term to access and use the SaaS Platform strictly for Customer’s CLIA-certified genomic diagnostic workflows.
- 2.2 Authorized Users & Identity Governance:** Access requires MFA-enforced SAML 2.0 federation (Okta / Azure AD). Customer maintains exclusive responsibility for role-based access control (RBAC) sign-off granting clinical sign-out privileges to licensed directors.
- 2.3 Usage Restrictions:** Customer shall not: (a) reverse-engineer or extract proprietary neural variant callers or hidden Markov alignment weights; (b) lease or white-label clinical reporting outputs to third-party reference laboratories without explicit addendum; (c) inject corrupted VCF references or breach HIPAA Business Associate Agreement (BAA) boundaries; or (d) violate FDA SaMD or HIPAA security rules.
- 2.4 Service Availability & Maintenance:** Provider shall maintain monthly infrastructure availability of not less than 99.95% excluding validated scheduled maintenance windows announced ≥96 hours in prior coordination.

3. COMMERCIAL TERMS, FEES, AND TAXES

- 3.1 Fees and Invoicing:** Customer shall pay all Fees specified in Attachment A (Order Form). Platform subscription fees and sequencing batch throughput overages are invoiced net thirty (30) days from invoice date via electronic wire transfer.
- 3.2 Late Payment Mechanics:** Overdue balances accrue late finance charges at 1.5% per month (or maximum statutory rate enforceable in Delaware, whichever is lower). If an invoice remains unpaid twenty (20) days after written delinquency notice, Provider reserves the right to suspend non-diagnostic exploratory pipeline runs until cure.
- 3.3 Taxes:** Fees exclude federal, state, and local sales, use, value-added, or withholding taxes. Customer shall remit any legally required withholding taxes directly or supply a valid direct-pay tax exemption certificate valid in California and Delaware prior to billing execution.

4. INTELLECTUAL PROPERTY & DATA SOVEREIGNTY

- 4.1 Provider IP Ownership:** Provider retains all right, title, and interest in and to the SaaS Platform, basecaller integration wrappers, variant annotation reference databases, and underlying software algorithms. Nothing herein transfers source code or model weights to Customer.
- 4.2 Clinical Specimen Sovereignty:** Customer retains exclusive title to all Clinical Specimen Metadata and patient genomic reads. Provider acquires a limited, encrypted processing license solely to render bioinformatics analysis under HIPAA BAA strictures.
- 4.3 De-identified Population Aggregation:** Provider may utilize strictly HIPAA-de-identified (Safe Harbor compliant) variant frequency distributions to benchmark clinical diagnostic sensitivity across multi-center cohorts, provided zero patient PHI, accession barcodes, or institutional identifiers are retained.

5. CONFIDENTIALITY & HIPAA COMPLIANCE OBLIGATIONS

- 5.1 Protection Standard:** Each Party (“Receiving Party”) shall protect non-public Confidential Information disclosed by the other Party (“Disclosing Party”) using enterprise cryptographic controls meeting NIST SP 800-88 / HIPAA Security Rule standards.
- 5.2 BAA Incorporation:** Processing of Protected Health Information (PHI) is governed strictly by the executed HIPAA Business Associate Agreement attached hereto as Exhibit B.

6. REPRESENTATIONS, WARRANTIES, AND DISCLAIMERS

- 6.1 Validation Warranty:** Provider warrants that pipeline execution engines produce deterministic variant call outputs matching validated benchmark VCF digests under identical reference genome builds (GRCh38.p14).
- 6.2 DISCLAIMER:** EXCEPT FOR EXPRESS WARRANTIES IN SECTION 6.1, THE PLATFORM IS PROVIDED “AS IS” FOR CLIA/CAP DIRECT-OVERSIGHT INTERPRETATION. PLATFORM VARIANT ANNOTATIONS DO NOT CONSTITUTE INDEPENDENT BOARD-CERTIFIED MEDICAL DIAGNOSES.

7. INDEMNIFICATION FRAMEWORK

- 7.1 Provider IP Defense:** Provider shall defend and indemnify Customer against third-party patent or copyright infringement claims arising directly from authorized production use of the SaaS Platform, paying final awarded damages or settlement costs approved by Provider.

8. LIMITATION OF LIABILITY

- 8.1 CONSEQUENTIAL DAMAGES EXCLUSION:** NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST CLINICAL REIMBURSEMENTS, SPECIMEN RE-EXTRACTION COSTS, OR REGULATORY WARNING LETTERS, EVEN IF ADVISED OF FORESEEABILITY.
- 8.2 AGGREGATE LIABILITY CAP:** EXCEPT FOR BAA/HIPAA BREACHES, CONFIDENTIALITY (SECTION 5), IP INDEMNIFICATION (SECTION 7.1), OR GROSS NEGLIGENCE, EACH PARTY’S TOTAL CUMULATIVE LIABILITY ARISING UNDER THIS AGREEMENT SHALL NOT EXCEED TOTAL SUBSCRIPTION FEES ACTUALLY PAID BY CUSTOMER TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM EVENT.

9. TERM, SUSPENSION, AND TERMINATION

- 9.1 Term & Termination:** Commences Effective Date and continues through active Order Forms. Either Party may terminate for material un-cured breach after 30 days (10 days non-payment). Within 45 days post-termination, Customer may request full encrypted export of VCF/FASTQ run archives via signed S3 URIs prior to certified cryptographic deletion.

10. GOVERNING LAW AND EXECUTION

- 10.1 Controlling Jurisprudence:** Delaware law; exclusive venue Wilmington, DE state/federal courts. Executed in electronic counterparts via ESIGN/UTA compliant PKI signatures.

IN WITNESS WHEREOF, AUTHORIZED CORPORATE OFFICERS EXECUTE THIS MASTER AGREEMENT AS OF NOVEMBER 1, 2026.	
FOR PROVIDER: Synthesis BioAnalytics Inc. Signature: /s/ Dr. Alistair Thorne Name: Alistair Thorne, PhD Title: CEO Date: Nov 1, 2026	FOR CUSTOMER: Genomix Clinical Diagnostics LLC Signature: /s/ Dr. Maya Lin Name: Maya Lin, MD, PhD Title: Lab Director Date: Nov 1, 2026

ORDER REF	OF-2026-SYN-7718 (Exec V2)	EFFECTIVE TERM	Nov 1, 2026 – Oct 31, 2028 (24 Months)
BILLING SCHEDULE	Annual Advance (\$245,000/yr Net 30)	ACCOUNT AE	Claire Sterling (c.sterling@synthesisbio.com)

SKU / Platform Module	Tier / Scope Description	Qty / Units	Unit Price (USD)	Extended Annual (USD)
SYN-CLIA-ENTERPRISE	HelixFlow CLIA/CAP Multi-Tenant Variant Calling Suite	2 Sites	\$82,000.00	\$164,000.00
SYN-NGS-THRU-50K	High-Throughput Whole Exome/Genome Tier (Up to 50,000 samples/yr)	50K Samples	\$1.18 / sample	\$59,000.00
SYN-VALID-PKG-GXP	IQ/OQ/PQ Computerized System Validation Evidence Artifact Package	1 Package	\$14,800.00	\$14,800.00
PROF-BIOINFO-CONSULT	Dedicated Clinical Bioinformatics Engineering Support Hours	40 Hours	\$180.00 / hr	\$7,200.00
Total Annual Contract Value (ACV — USD):				\$245,000.00

GOVERNING SCOPE & COMMERCIAL EXCEPTIONS:

1. Specimen Tier Overtaking: Tier 2 overage billed quarterly at \$1.35/sample.
2. BAA Execution: HIPAA BAA attached as Exhibit B governs PHI ingress.
3. Designated Cloud Region: AWS us-west-2 (Oregon) HIPAA-eligible enclave with customer-managed KMS.
4. Payment Remittance: Wire/ACH payable to Synthesis BioAnalytics Inc., Silicon Valley Bank, Routing #121107826, Acct #8892-3310-9100.

ORDER FORM ACCEPTANCE AND AUTHORIZATION

Synthesis BioAnalytics Acceptance: Signature: /s/ Claire Sterling Director Life Sciences Sales Date: Nov 1, 2026	Genomix Clinical Diagnostics Acceptance: Signature: /s/ Dr. Marcus Vance COO Genomix Diagnostics Date: Nov 1, 2026
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This Service Level Agreement (“SLA”) forms an integral part of Master Subscription Agreement MSA-2026-SYN-4102 by and between Synthesis BioAnalytics Inc. (“Provider”) and Genomix Clinical Diagnostics LLC (“Customer”).

1. AVAILABILITY COMMITMENT & MEASUREMENT

Monthly Uptime Calculation Formula

Uptime % = $[(Total\ Calendar\ Minutes - Unscheduled\ Pipeline\ Downtime\ Minutes) \div Total\ Calendar\ Minutes] \times 100$

Target Commitment: Provider guarantees monthly platform availability of 99.95% (“Service Commitment”). Validated maintenance windows communicated ≥96 hours prior are excluded.

2. SERVICE CREDIT SCHEDULE

Monthly Measured Availability %	Service Credit Percentage (% of Monthly Platform Fee*)
99.8% to < 99.95%	15% Credit
99.5% to < 99.8%	30% Credit
< 99.5%	50% Credit

*Service Credits apply exclusively to recurring SaaS platform license fees and are credited against subsequent quarterly invoices upon Customer written request submitted within fifteen (15) days of month-end.

3. CLINICAL INCIDENT RESPONSE & SEVERITY CLASSIFICATION

Severity Level	Definition	Initial Response Target	Mitigation / Update Cadence
Severity 1 (Critical)	Complete pipeline execution outage preventing CLIA diagnostic batch turn-around or authentication lockout.	≤ 20 Minutes (24/7/365 On-Call)	Status update every 30 minutes until clinical pipeline active.
Severity 2 (High)	Variant annotation reference sync delay (>12 hours lag) or export manifest formatting discrepancy.	≤ 2 Business Hours	Status update every 4 hours.
Severity 3 (Standard)	Non-blocking UI telemetry filtering lag or cosmetic report header sorting variance.	≤ 24 Business Hours	Resolved in validated monthly maintenance window.

4. SECURITY, HIPAA & AUDIT GOVERNANCE

- 4.1 Encryption & Isolation:** Patient FASTQ/VCF files are encrypted at rest using AES-256 via customer-managed AWS KMS keys. In-transit traffic enforces TLS 1.3 with mTLS for variant ingress endpoints.
- 4.2 Compliance & Audit Attestations:** Provider maintains annual SOC 2 Type II, ISO/IEC 27001:2022, and CLIA/CAP software verification compliance artifacts available under NDA inspection.
- 4.3 HIPAA Breach Notification Protocol:** Confirmed security incidents involving unauthorized PHI exposure shall be reported in writing to Customer Security Officer (security@genomixdx.com) within twenty-four (24) hours of forensic verification.

EXHIBIT CONFIRMATION — CLINICAL RELIABILITY & BAA ATTACHMENT B	
Synthesis BioAnalytics CISO: Signature: /s/ Dr. Elena Rostova Elena Rostova, CISO Date: Nov 1, 2026	Genomix Clinical Diagnostics CSO: Signature: /s/ Dr. Ravi Kumar Ravi Kumar, Chief Science Officer Date: Nov 1, 2026